

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-15

**NETCYCLE TRADING CORP., REVOCATION OF OCEAN
TRANSPORTATION INTERMEDIARY LICENSE NO. 021597NF**

MOTION FOR ACCEPTANCE OF LATE FILING

Pursuant to Federal Maritime Commission (FMC) Rules 1 (46 C.F.R. § 502.1), 71 (46 C.F.R. § 502.71), 102 (46 C.F.R. § 501.102(b)), and 105 (46 C.F.R. § 502.105), Netcycle Trading Corp., by and through undersigned counsel, respectfully request the acceptance of the late filing of Netcycle's response in support of the continuation of its license. Because Netcycle's deadline to file its response was May 16, 2024, pursuant to the FMC's rules, this motion is considered a request to accept a late filing. Pursuant to Rule 102, this request is accompanied by Netcycle's proposed response which is attached hereto as Exhibit A. As discussed below, the motion should be granted.

PROCEDURAL HISTORY

On March 21, 2024, the Bureau of Certification and Licensing issued a letter noticing Netcycle of the Federal Maritime's Commission intent to revoke its ocean transportation intermediary (OTI) license. Thereafter, on March 19, 2024, Netcycle submitted a request for a hearing. On April 16, 2024, declining to file a brief outlining its arguments, the Bureau of Enforcement, Investigations, and Compliance (BOEIC) filed its submission of materials supporting the Notice of Intent to revoke and the Chief Administrative Law Judge issued a notice informing Netcycle of its right to respond with a deadline no later than May 16, 2024.

Since receiving the Notice, Netcycle's QI and former President, Nadia Ledesma has been in the process of determining how best to respond on behalf of Netcycle in this matter including whether to retain counsel. However, due to overwhelming work obligations and ongoing medical issues, Ms. Ledesma inadvertently lost track of the deadline in this matter. Ms. Ledesma was reminded of the deadline when she received an email from the FMC on May 21, 2024, and thereafter retained the undersigned law firm to file the instant motion and response on Netcycle's behalf. Time was thereafter needed to draft this motion and attached proposed response.

ARGUMENT

Pursuant to FMC Rule 1 (46 C.F.R. § 502.1), the rules governing procedure in front of the FMC "shall be construed to secure the just, speedy and inexpensive determination of every proceeding." The FMC rules allow for the filing of requests for extension of time, including extensions filed after the applicable deadline have passed. See Rule 102. Pursuant Rule 102, in considering a motion for an extension after a deadline has passed, the FMC will consider such a request as one to accept a late filing. Such motions are to be considered when exceptional circumstances exist or as justice requires. *Id.* Additionally, pursuant to Rule 105 (502.105) the presiding officer may waive the requirements of Rule 102 for "good cause." See Rule 105.

In considering a request for a late filing in *Santa Fe Discount Cruise Parking, Inc., d/b/a EZ Cruise Parking; Lighthouse Parking Inc.; and Sylvia Robledo d/b/a 81st Dolphin Parking v. The Board of Trustees of the Galveston Wharves; and the Galveston Port Facilities Corporation*, the FMC explained that

Commission Rule 1 requires that its rules "be construed to secure the *just*, speedy, and inexpensive determination of every proceeding," 46 C.F.R. § 502.1 (emphasis added), and any of the rules in this part, except § 502.11 and 502.153, may be waived by... the presiding officer in any particular case to prevent undue hardship, manifest injustice, or if the expeditious conduct of business so requires." 46 C.F.R. § 502.10... The Commission traditionally has sought to do equity rather than permit a party to be cut off from an opportunity to be heard due to

a rigid or mechanical application of the Commission's rules." *Verucci Motorcycles, LLC v. Senator International Ocean, LLC*, FMC No. 06-05, Order at 4 (FMC May 7, 2008) (Order Reopening the Proceeding).

2014 WL 7404584 *11 November 21, 2014.

Here, exceptional circumstances exist. As discussed above, Netcycle takes this matter with the utmost seriousness. It was in the process of determining how best to respond and whether to procure counsel in order to do so. However, as a result of medical issues and work obligations, Netcycle inadvertently missed the deadline to respond.

Next, the motion should be granted in the interest of justice. The BOEIC seeks to revoke Netcycle's OTI license. Such a revocation will have profound ramifications for Netcycle, its customers, and its employees. Granting the short extension requested herein and allowing Netcycle to be heard before action is taken serves the interests of justice.

Even assuming *arguendo* that Netcycle has not demonstrated sufficient circumstances under Rule 102, Netcycle respectfully requests the waiver of the requirements of Rule 102 pursuant to Rule 105 as Ms. Ledesma's medical issues constitute good cause.

Finally, as this motion is being filed only 15 days after the original deadline, there is no prejudice to the BEIC. Indeed, the BEIC will have an opportunity to respond and has not expended significant time in this matter thus far having waived its right to file its opening arguments.

On May 21, 2024, undersigned counsel contacted Mr. Johnathan Todd of the BOEIC who indicated that the BOEIC opposes any extension in this matter.

RELIEF REQUESTED

It is therefore respectfully requested that the Presiding Officer issue an Order accepting the late filing of Netcycle's response for the exceptional circumstances set forth herein and as required by the principals of justice.

WHEREFORE, it is respectfully requested that Netcycle's motion be granted in its entirety.

SANDLER, TRAVIS & ROSENBERG, P.A.

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By: /s/ Jason M. Kenner
JASON M. KENNER

/s/ Andrew Margolis
ANDREW MARGOLIS

Dated: May 31, 2024

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 31st day of May 2024, the foregoing motion for acceptance of late filed response with attached proposed response was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
Presiding Administrative Law Judge
judges@fmc.gov

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